

Vendor Agreement

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1. Object

This Vendor Agreement (hereinafter, the “VA”; , “ VA Contract” “Agreement”) is a legal agreement between Shree Samarth Innovative Technologies Private Limited, (“The Company,” "us", or "we") , by which expression includes QFREEMART’s relevant legal representatives, administrators, successors-in-interest, permitted assigns and affiliates (“Affiliates”), and the entity or person ("you", "your", or "user") who registered a Vendor account on the QFREEMART App (“The App “ “The Platform”) or websites worldwide (“The Website”) , or collectively referred to as the “Site” “Platform” “Marketplace”, and which establishes the terms and conditions that govern the provision of services rendered to this specific user accounts upon accessing the Platform.

Your utilization of our Services is contingent upon adhering to the provisions outlined in this Vendor Agreement which is an integral document of the Terms and Conditions and shall be read and interpreted in conjunction with it.

QFREEMART operates as a platform facilitating the display and acquisition of diverse goods from registered vendors. These vendors assume the responsibility of promoting, enabling availability, arranging delivery, and conducting financial transactions pertaining to customer orders. QFREEMART, in its role as the platform, assumes limited liability, as it solely serves as a host for users, providing the necessary means for viewing, promoting, and ordering items, thereby establishing connections between customers and vendors. It is the individual responsibility of each user to fulfill their obligations as outlined in these terms and conditions. QFREEMART shall not be held accountable for any user's failure to fulfill their obligations as stipulated by this agreement.

2. Definitions

When reading and interpreting these Vendor Agreement, it is important to consider that in addition to the bellow included definitions, the definitions included in the aforementioned documents shall also apply:

“Vendor” pertains to a legally recognized entity that is duly registered in the country of operation, holds a valid trade license, and has created a dedicated Vendor account on the App.

“Representative” individual who is authorized to act on behalf of a company in various legal and business matters. A company representative may be an employee, officer, director, or agent of the company, and is typically designated as such by the company's governing documents or by specific authorization from the company's leadership. The actions of a company representative are generally binding on the company, and the representative may be held personally liable for any wrongful or illegal actions taken on behalf of the company.

“User” refers to any individual or entity that accesses or uses the App, including registered customers and vendors.

“ Staff ” individual who has been designated and delegated by the Vendor to operate the account on their behalf, with limited access imposed and controlled by the Vendor.

“Courier” is a person or company that is hired as subcontractor by the Vendor to transport ,deliver and complete orders on it's behalf

“Facility ” refers to the online store (whether hosted by QFREEMART or on a third-party website), or any storefront created utilizing the QFREEMART API, as well as any physical retail location(s) associated with the QFREEMART Account.

“Merchant of record” entity that is responsible for processing and managing financial transactions related to the sale of goods or services. This includes authorizing charges, processing payments, and handling refunds or chargebacks.

“Fees“ means charges or payments required to be made by the user in exchange for access to specific features and usage of associated services;

“Subscription” refers to a payment model that allows users to access specific additional features or content within the app for a determined period of time.

“Term” is the period of time during which the contract is in effect and enforceable

3. Updates

QFREEMART reserves the right to modify, alter, revise, or update these Agreement at its sole discretion. It is your responsibility to regularly review these Agreement and ensure ongoing adherence to them. By utilizing the QFREEMART Platform subsequent to any such amendment or alteration of the Agreement, you expressly acknowledge and accept the revised or modified terms, and you also agree to be bound by them.

QFREEMART may, at its sole discretion, develop and provide updates to the Application, which may include bug fixes, upgrades, patches, new features, and related documentation (collectively referred to as "Updates"). These Updates may modify or remove certain features and functionality. QFREEMART is not obligated to provide any Updates or continue to provide any specific features or functionality. Depending on your Mobile Device settings, the Application may automatically download and install all available Updates when your device is connected to the Internet, or you may receive a notice or prompt to download and install available Updates. It is your responsibility to promptly download and install all Updates, as failure to do so may result in the Application or certain portions of it not functioning properly. You acknowledge and agree that all Updates will be considered part of the Application and subject to the terms and conditions of this Agreement.

4. Eligibility

This Vendor Agreement is a legally binding agreement between you and us which governs the relationship and sets forth the terms and conditions by which you may access and use, including, without limitation, the Platform and our related Platforms, services, applications, products and any content, functionality services or any other interactive areas offered on or through the Platform (collectively, the “Services”). Access to certain Services or features of the Services (such as, by way of example and not limitation, the ability to upload Content) may be subject to various restrictions and not available to all the users of the Services at all times.

By agreeing to this terms, you acknowledge that meeting all of the following conditions is a prerequisite for eligibility:

1. you are a legally recognized entity that is duly registered in the country of operation and holds a valid trade license throughout the term of this contract
2. any operation carried out on/ trough your account shall be only performed by your representative (as defined above)
3. your representative must be at least 18 years old and considered an adult in the jurisdiction where the Platform is being accessed. Additionally, your representative must have your authorization and power of attorney to enter, on your behalf, into this legally binding contract based on the terms, conditions, obligations, affirmations, representations, and warranties outlined in this Agreement.
4. your representative has full right, power and authority to enter into such agreement without limitations of any form such as but not restricted to language nuances in which this agreement is drafted which might impede your ability to fully understand it's purpose and content.
5. you or your representative have no any other prior or current agreement or obligation of any nature whatsoever that can interfere with your ability to abide by and comply with these Terms of Service.

Finally you confirm that you enter into this legally binding contract under no duress or coercion but rather on your own free will.

The Vendor represents and warrants that all information pertaining to their identity and capacity, as provided to you in the registration forms for the Platform, is true, accurate, and complete. Furthermore, the Vendor agrees to maintain the accuracy and completeness of their details by promptly updating them as necessary

5. Acceptance of terms

If you do not understand any of the terms of this Agreement, please contact us before using the Services.

This Contract (including additional terms that may be provided by us when you engage with a feature of the Services) is the only agreement between us regarding the Services and supersedes all prior agreements for the Services.

By accessing and/or utilizing the Platform, you acknowledge, accept, and expressly agree to abide by the terms of use as set forth. You confirm that you enter into this legally binding Agreement under no duress or coercion but rather on your own free will.

By using the Services, you agree to utilize them solely for purposes that are in accordance with (a) the Terms and (b) any applicable laws, regulations, or generally accepted practices or guidelines in the relevant jurisdictions.

By accepting this Agreement, you understand and accept that the Application is licensed to you and not sold. You do not gain any ownership rights or other entitlements to the Application, except for the right to use it in accordance with the license granted and subject to the terms, conditions, and restrictions outlined in this Agreement. QFREEMART retains full ownership of the Application, including all copyrights, trademarks, and other intellectual property rights, unless expressly granted to you in this Agreement.

6. Severability

Should any portion, provision, representation, or warranty of this Agreement be prohibited or deemed void or unenforceable, it shall have no effect to the extent of such prohibition or unenforceability, without invalidating the remaining provisions contained herein.

In the event that any clause, whether in its entirety or in part, of these Terms becomes null and void, it is explicitly agreed that the remainder of the Agreement shall remain fully valid. The failure to enforce any breach of this Contract by Shree Samarth Innovative Technologies Private Limited does not signify a waiver of its right to enforce this Agreement.

7. Facility

Upon registering a vendor account you shall access features which allow you to create your QFREEMART Facility through which you will be able to promote your digital identity, list your merchandise for sale and manage orders. When creating the Facility's identity, the Vendor must adhere to the specific content regulations outlined in the Terms and Conditions.

You can select a unique name for your Facility, subject to availability, ability to prove ownership of the brand and QFREEMART's ultimate approval. You shall be responsible for ensuring that the name of the Facility Owner (including the legal name of the company that owns the Facility, if applicable) is clearly visible on the Facility's Profile.

The Facility may not be shared, subleased, utilized in conjunction with or as a front for a third party, or otherwise exploited by the Vendor to aggregate and integrate the operations of more than one legal entity, other than the one for which it was established.

Upon approval of usage of the Facility Identity. QFREEMART does not guarantee or endorse any association or ownership of a brand, and therefore shall not be held liable for any legal disputes or infringement claims arising from the use of the brand name. QFREEMART reserves the right to revoke the usage rights of any Facility name without having to provide an explanation, if it deems that the name may infringe on copyright, trademark, patent, trade secret and other intellectual property or proprietary rights of a legal entity, or if the claimant is unable to provide proof of ownership for the brand.

The store owner shall be responsible for ensuring that all operations conducted through the Facility comply with all applicable laws and regulations. Under this Agreement, the store shall be viewed as an extension of the Vendor's legally authorised ability to perform such services, and any actions taken through the store shall be considered, under the laws and regulations of the India, equally liable as if they were operated through a physical store.

Access to and usage of facility is subject to the condition precedent of remitting the Facility fees and related Subscription. Such remittance shall be made in advance, for each facility that the customer opts to establish, and shall not be subject to reimbursement.

7.1 Listing of products for sale

As the seller of products sold through the Services, you are responsible for creating and operating your QFREEMART Facility, creating and uploading your Materials, being the sole merchant of record, holding other appropriate Records and fulfilling orders. This includes all aspects of the transactions between you and your customer(s), such as authorizing charges, refunds, returns, fulfilling sales or customer service, addressing fraudulent transactions, complying with legal requirements, and ensuring regulatory compliance

"Additional listings" refers to the process of adding more products to the platform beyond the initial package with limited number of products that is included. In order to list additional products beyond the limit set in the initial package, the seller is

required to purchase extra packages, which may come at an additional cost. These packages typically have a predetermined limit, and once that limit is reached, the seller must purchase another batch to continue listing additional products.

8. Access for staff

Based on the selected QFREEMART pricing plan, you have the option to create one or multiple staff accounts ("Staff Accounts") that enable other individuals to access your Account.

Each Staff Account must include a complete legal name and a valid email address. By utilizing Staff Accounts, the Facility Owner has the ability to assign permissions and authorize other individuals to work within the Account while controlling their level of access to specific business information. For instance, the Facility Owner can restrict Staff Account access to sales information on the Reports page or prevent them from modifying general store settings.

The Facility Owner assumes the following responsibilities in relation to Staff Accounts:

- (a) Access to Staff accounts is only granted to individuals who have a valid legal contract with the Vendor and are legally authorized to perform services under this Agreement.
- (b) Ensure that their employees, agents, and subcontractors, including those accessing the Account through Staff Accounts, adhere to these Terms of Service.
- (b) Is liable for any violation of these Terms of Service committed by their employees, agents, or subcontractors.

The Facility Owner acknowledges and agrees that Facility Owner will be responsible for the performance of all of its obligations under the Agreement, regardless of whether it sublicenses or subcontracts any such obligations to any third party, including but not limited to any employees, subcontractors, affiliates or subsidiaries

9. Couriers

By accepting orders through QFREEMART, you hereby acknowledge and agree that only legally authorized couriers shall be permitted to act on your behalf in fulfilling such orders. Prior to mandating a courier to act on your behalf, it is your responsibility to ensure that all necessary documentation is obtained and in compliance with all applicable laws and regulations. You further acknowledge and agree that such documentation shall be unconditionally produced upon request.

Couriers engaged by you to fulfill orders, deliver products, and conduct financial transactions on your behalf, whether as your own employees or as hired by a third party pursuant to a legally binding contract, may be subject to various laws and regulations. Such laws and regulations may include those governing the transportation of perishable, fragile, or hazardous materials, as well as the handling of confidential information. Furthermore, couriers may be required to obtain licenses or permits in order to operate legally in certain jurisdictions.

10. Vendor Responsibilities and code of conduct

You acknowledge and agree to provide accurate public-facing contact information and, upon request, any supportive documentation in relation to your legal standing or the merchandise you list

Comply with the Refund policy and Terms of sale

Acknowledge and agree that any sale made through the Services is directly between you and the customer.

10.1 Anti-Bribery & Corruption

You are unequivocally prohibited from offering or accepting bribes, or engaging in any behavior that violates (or appears to violate) any applicable anti-bribery or anti-corruption-related laws. This obligation applies to all individuals associated with you, including but not limited to employees, agents, subcontractors, and affiliates. Any breach of this obligation may result in legal action being taken against you, and may also result in reputational damage to QFREEMART. It is therefore imperative that you take all necessary steps to ensure that you are in full compliance with all applicable laws and regulations governing anti-bribery and corruption.

10.2 Anti-Counterfeiting & Intellectual Property Protection

It is incumbent upon you to ensure that the products you source and sell are authentic, and that you scrupulously respect QFREEMART's intellectual property rights, as well as the intellectual property rights of others. In order to comply with intellectual property rights, you must obtain explicit permission to use the intellectual property of others and refrain from any misuse of third-party intellectual property. Failure to comply with these obligations may result in legal action being taken against you, and may also result in reputational damage to QFREEMART. It is therefore imperative that you take all necessary steps to ensure that you are in full compliance with all applicable laws and regulations governing anti-counterfeiting and intellectual property protection.

10.3 Confidentiality & Data Privacy

You must comply with all relevant laws and regulations governing confidential and proprietary information, as well as our data privacy.

To this end, you must take all necessary measures to safeguard any information that you receive from QFREEMART and/or pertaining to QFREEMART's business partners, vendors, customers, employees, and employment candidates. Additionally, you must ensure that all business records are created, retained, and disposed of in accordance with all applicable legal and regulatory requirements. It is imperative that you take all necessary steps to ensure that you are in full compliance with all applicable laws and regulations governing confidential and proprietary information, as well as data privacy.

10.4 Conflicts of Interest

It is imperative that you avoid any actual or potential conflicts of interest that may arise from business or personal relationships with QFREEMART customers, other vendors, QFREEMART's competitors or potential competitors, or QFREEMART employees. In the event of any actual or potential conflict of interest, or any connection to, or affiliation with, a QFREEMART employee or the employee's family member, a member of their household, or someone with whom the employee has a significant personal relationship, you must disclose such information to the Compliance Team at contactus@qfreemart.in

10.5 Fair Business, Advertising, Consumer Protection & Competition Laws

You are expected to have a comprehensive understanding of and comply with all relevant fair business, advertising, consumer protection, and competition laws, including fair trading and antitrust laws. Additionally, you must treat QFREEMART customers with honesty, fairness, and propriety, and in a manner that is fully compliant with all applicable civil and criminal laws and consumer practices. You are responsible for ensuring that all listing descriptions are accurate, and that your listings do not mislead customers into believing something that is untrue

In order to list on QFREEMART's platforms, you must:

- ensure that the products you sell are original and genuine.
- accurately describe the products or services being sold.
- ensure that your products and services must be of reasonable quality, free from defects in workmanship, materials, and design.
- only advertise products or services that you have available, in stock, and are fully capable of fulfilling.
- abide by all shipping representations and timeframes.
- ensure that your products and services must comply with all applicable laws.

It is crucial that the reference price you provide to QFREEMART for your goods or services accurately reflects their actual, regular value. This means that the reference price should be based on the price at which you, or a comparable seller, have regularly offered the same or similar goods or services to the public for a reasonably substantial period of time before your offer on QFREEMART. It is your responsibility to ensure that your reference prices are up-to-date and reflect the current market value of your goods or services. You must update your reference prices whenever necessary to ensure that they remain current.

In addition to ensuring that your reference prices accurately reflect the actual, regular value of your goods or services, it is also imperative that you avoid using price dumping tactics. Price dumping refers to the practice of selling goods or services at a significantly lower price than their actual market value, with the intention of driving competitors out of business or gaining a larger market share

It is also important to avoid using deceptive pricing strategies and therefore, it is important for businesses to disclose all fees and charges associated with their products or services upfront, before the customer makes a purchase. This ensures that customers are fully informed about the true cost of the product or service and can make an informed decision about whether or not to proceed with the purchase. Such deceptive strategies can include but are not restricted to :

- Hidden fees or charges: This involves adding additional fees or charges to the advertised price of a product or service, which are not disclosed until the customer is ready to make a purchase.
- Bait and switch: This involves advertising a product or service at a low price to attract customers, but then attempting to sell them a more expensive alternative once they are in the store or on the website.
- Price anchoring: This involves setting a high initial price for a product or service, and then offering a discount or sale price that is still higher than the actual market value.
- Dynamic pricing: This involves changing the price of a product or service based on factors such as the customer's location, browsing history, or time of day, in order to maximize profits.
- Misleading comparison pricing: This involves comparing the price of a product or service to a higher price that is not representative of the actual market value, in order to make the advertised price seem like a better deal.

You must not inflate or increase reference prices, or otherwise manipulate pricing or values in any way that is unfair, deceptive, misleading, and/or outside the ordinary course of business.

You must not exploit emergency situations, such as healthcare crises, natural disasters, or other catastrophes, by charging excessively high prices for products or services sold on QFREEMART, or by making false claims regarding such products or services.

10.6 International Trade

You are required to follow all laws and regulations related to importing goods and services into the India, as well as any economic sanctions that may be in place. This includes complying with any licensing requirements, customs regulations, and trade restrictions that may apply to your products or services.

10.7 Labor & Human Rights

You are required to follow all laws and regulations related to labor and employment practices, as well as health and safety standards. This includes ensuring that all employees are treated fairly and with respect, and that they are not subjected to any forms of coercion or exploitation. Specifically, it is illegal to employ children under a certain age, and businesses must ensure that all employees are of legal working age. Additionally, businesses must provide a safe and healthy work environment for their employees, and must take all necessary steps to prevent accidents and injuries in the workplace.

In addition to complying with labor and employment and health and safety laws and regulations, businesses must also ensure that they do not engage in discriminatory, harassing, or otherwise inappropriate behavior towards their employees. This includes behaviors such as sexual harassment or misconduct, which can create a hostile work environment and negatively impact the well-being of employees. It is the responsibility of businesses to provide a safe and respectful work environment for all employees, and to take all necessary steps to prevent and address any instances of discriminatory or harassing behavior.

10.8 Regulatory Authorities & Law Enforcement

You are required to comply with all applicable laws and regulations governing your practices. If a concern is raised regarding your practices, you must cooperate with regulatory authorities and law enforcement agencies in a reasonable manner. This includes providing any information or documentation that may be requested, and allowing access to your premises or facilities for inspection or investigation purposes.

Additionally, you must cooperate with any investigation conducted by QFREEMART, which may include providing information or documentation related to your practices.

It is required that you notify QFREEMART of any inquiries made by regulatory authorities or law enforcement before responding to them, unless doing so would violate applicable law. Additionally, you must inform QFREEMART if a police report or formal complaint has been filed or raised regarding your actions or inactions, the conduct of other customers, or the conduct of any of your employees, agents, subcontractors, or affiliates. This notification must be made if the complaint or report is made by either a QFREEMART customer or a non-QFREEMART customer if a QFREEMART customer could be affected.

11. Charges and payment

Specific features and usage of services related to Vendor accounts (" Paid Services") are conditional on payments of associated charges ("Fees"). Specific additional features and benefits may vary depending on the subscription chosen by the user.

The fees for the Paid Services are published on the Platform and shall be read and interpreted in conjunction with this Agreement. By utilizing the Paid Services, you consent to pay the fees in accordance with these Terms, and such fees shall not be construed in any manner other than for the provision of access to the resources described at the time of subscription. QFREEMART bears no warranty or liability whatsoever in connection with the subscription.

Paid services and access to platform features are provided on per account basis. We may introduce new or cancel existing paid services and features at any time and change pricing from time to time. You will be informed about any of the changes at least one month in advance via email and/or on our Platform.

11.1 Subscriptions

Subscriptions for Paid Services shall include a minimum of 1 month (30-day) usage, shall be prepaid are non-refundable. The Customer will be invoiced and charged the Fees set out in the subscription plan the Customer chose upon registering. Unless otherwise specified in the Order Form, the subscription will automatically renew at the end of each paid period unless explicitly cancelled before the start of the new billing period. The monthly renewal of the subscription is contingent to the payment of variable charges and in the event of a store suspension, any outstanding balance shall not be reimbursed.

11.2 Variable charges

The vendor shall remit to the company a percentage of the total sales made through the platform, as specified in the package list accessible on the platform. The Company is obligated to provide a monthly invoice, which shall be due and payable in full upon issuance and no later than one week thereafter. In the event of non-payment, the Company reserves the right to suspend the store without recourse, regardless of any outstanding balance on the subscription.

11.3 Facility addition charges

Facility fees refer to the payment required in advance for the establishment, access and usage of a Facility. Access to and usage of the facility is contingent upon the payment of these fees, which are non-refundable.

11.4 Additional listing charges

Additional listing charges are fees imposed on the seller for adding more products to the platform beyond the initial package, which has a limited number of products. The seller is required to purchase extra packages to list additional products beyond the

limit set in the initial package, which may come at an additional cost. These packages have a predetermined limit, and once that limit is reached, the seller must purchase another package to continue listing additional products. The charges for these additional packages are non-refundable and must be paid in advance.

11.5 Authorisation for online payments

The Customer hereby permits the Company to take credit and debit card payments in advance upon the issue of each invoice. The Fee is the price in force and set out in the online price list of the Company at the date and time of each invoice. In case of an unsuccessful charge to credit card, we'll automatically suspend paid features of your plan until your payment can be processed.

The Customer is responsible for providing accurate information when obtaining the Services and confirming that the banking and card details used belong to them and have sufficient funds or credit to cover the Fees. If the credit card used for payment expires, the Customer must provide information for a different valid credit card. By using a credit card, the user represents and warrants that they are authorized to use it and that any charges can be billed to that credit card without rejection. In the event that the third-party payment processor is unable to process the credit card order, we will attempt to charge the card three more times in the following days. However, consecutive charge retries will not change or extend the monthly or annual renewal date.

All prices for Services, including taxes, invoiced by QFREEMART are calculated in local currency (INR for India) and the credit card will be charged in local currency (INR for India). Unless otherwise stated on the Order Form, all undisputed invoices shall be payable on the schedule provided in the Order Form. Any disputed amounts shall not affect the payment of non-disputed amounts.

Payments may be completed through the Stripe payment system. We do not store or share any personal information associated with a payment (like Credit Card number, owner, or expiration date). Some information available in Stripe is stored on Stripe as part of the transaction history. More information about what information is stored and processed by payment processors is available on our Privacy Policy page.

If the Paid Membership period is limited, a periodic payment will be automatically created in Stripe to extend your membership when the initial membership period is over. You can cancel this automatic periodic payment directly in your QFREEMART account.

12. Cancellations due to Inactivity or performance

Without prejudice to the termination provisions set forth in the Terms and Conditions, the following shall apply to Vendor accounts:

Unless otherwise specified in an Order Form, either you or QFREEMART may terminate this Agreement at any time and for any reason by providing Notice to the other party. Termination of the Agreement will result in the loss of access to your account. To avoid automatic renewal and subsequent charges, you must explicitly cancel your subscription to paid services on the Website or by contacting contactus@qfreemart.in before the next payment date. If you do not cancel your subscription, it will automatically renew and you will be charged the next subscription fee. If auto-renewal occurs, all paid services will be provided to you for the next month.

We reserve the right to terminate the Agreement under the following circumstances: (a) if you have violated any provision of these Terms or have demonstrated an unwillingness or inability to comply with them; (b) if we are legally required to do so, such as if providing the Services to you becomes unlawful; (c) if we determine that providing the Services to you is no longer commercially viable; or (d) if we decide to discontinue the Services or any part thereof. If QFREEMART terminates this Agreement because you breached this Agreement or any applicable laws, no refund will be issued.

In the event that you do not log in to your account for a period of 4 or more months and the Service remains inactive, we reserve the right to consider your account as "inactive" and permanently delete the account and all associated data.

If an account becomes deactivated due to a breach of this Agreement and/or a long period of inactivity, QFREEMART reserves the right to charge an account reactivation fee should the customer wish to reactivate the account.

During a one-month period, the facility shall ensure that the percentage of delivered orders for orders received as order requests on the platform is not less than 95%. The facility shall also ensure that the percentage of rejected orders for orders received as order requests on the platform is not more than 5%, and the percentage of cancelled orders for orders received as order requests on the platform is not more than 5%, even if the cancellation is initiated by consumers. Orders that are neither accepted nor rejected upon receipt of the order request, which will be considered as rejected orders, must also be maintained at a rate of no more than 5%. Failure to comply with these requirements will result in an investigation by the platform, and if any malpractices are suspected, the facility will be compelled to close, and consumers will no longer be able to view the products and services offered by the facility.

Once terminated, we may permanently delete your account and all the data associated with it.

13. Warranties

Subject to the warranties outlined in the Terms and Conditions, the following provisions shall govern Vendor accounts:

Each party warrants and represents that: (i) it has full corporate power and authority to enter into this Agreement and to perform the obligations required hereunder; (ii) the execution and performance of its obligations under this Agreement does not violate or conflict with the terms of any other agreement to which it is a party and is in accordance with any applicable laws; and (iii) it shall respect all applicable laws and regulations, governmental orders and court orders, which relate to this Agreement.

We hereby disclaim any and all warranties or guarantees, express or implied, with respect to the results of utilizing the Services, including but not limited to any warranty of merchantability or fitness for a particular purpose. Furthermore, we do not guarantee that the Services will conform to the specifications or requirements of the Customer, or that the Services will be free from any interruptions, errors, or defects.

The Customer hereby covenants and warrants to the Company that: (i) it possesses all requisite user rights, copyrights, and ancillary copyrights, and has obtained all necessary permits required to fulfill its obligations under this Agreement; (ii) it shall maintain reasonable security measures, which may be modified from time to time, to ensure that access to the Services granted under this Agreement is restricted in accordance with the terms of this Agreement, including measures to ensure confidentiality, authenticity, and integrity.

The Customer shall be held liable for any violation of this Agreement by its users. Furthermore, the Customer shall ensure that its network and systems conform to the applicable specifications provided by the Company on a periodic basis. The Customer shall bear exclusive responsibility for procuring and maintaining its network connections and telecommunications links from the Customer's systems to the Company's data centres, and for any issues, circumstances, delays, delivery failures, or other loss or damage arising from or related to the Customer's network connections or telecommunications links, or caused by the Internet.

Qfreemat provides all third-party content or information, including prices, via the Services on an "as is" basis. The Company disclaims all warranties with respect to such content or information and shall not be held liable to the Customer for any use or reliance on such content or information.

Except for the provisions explicitly set forth in this Agreement, all warranties and conditions, whether express or implied by statute, common law, or otherwise (including but not limited to satisfactory quality and fitness for purpose), are hereby excluded to the maximum extent permitted by law.

14. Confidential Information

Without prejudice to the confidentiality provisions set forth in the Terms and Conditions, the following shall apply to Vendor accounts:

Each party may utilize the Confidential Information of the disclosing party solely for the purposes of this Agreement and shall maintain its confidentiality, except to the extent (if any) that the recipient of such information is legally obligated to disclose such information.

Either party may reveal the Confidential Information to its employees and agents on a need-to-know basis for the purposes of this Agreement, provided that the employee or agent has executed a confidentiality undertaking in a form approved by the other party.

The confidentiality obligations under this Agreement shall not apply to information that: (i) was lawfully in the possession of the receiving party prior to the negotiations leading to this Agreement; (ii) is or becomes public knowledge (other than as a result of a breach of this Agreement) on or after the date of this Agreement; or (iii) is required to be disclosed by law.

15. Liability

Notwithstanding any other provisions regarding liability in the Terms and Conditions, the following provisions shall specifically apply to Vendor accounts:

To the fullest extent permitted by law, QFREEMART disclaims all liability for any direct or indirect loss or damage, whether foreseeable or not, including any consequential, special, or exemplary damages arising from the use of the Platform or any information contained therein. Users are advised that they utilize the Platform and its Content at their own risk.

Neither party excludes or limits its liability to the other for fraud, death or personal injury caused by any negligent act or omission or wilful misconduct.

In no event shall either party be liable to the other whether arising under this Agreement or in tort (including negligence or breach of statutory duty), misrepresentation or otherwise arising, for any Consequential Loss. 'Consequential Loss' shall for the purposes of this section mean: (i) pure economic loss; (ii) losses incurred by any client of the Customer or other third party; (iii) loss of profits (whether categorised as direct or indirect loss); (iv) losses arising from business interruption; (v) loss of business revenue, goodwill or anticipated savings; and (vi) losses whether or not occurring in the normal course of business, wasted management or staff time.

The Vendor shall be liable for any breaches of this Agreement caused by the acts, omissions or negligence of any users who access the Services as if such acts, omissions or negligence had been committed by the Customer itself.

In no event shall the Vendor raise any claim under this Agreement more than three (3) months after: (i) the discovery of the circumstances giving rise to such claim; or (ii) the effective date of the termination of this Agreement.

The parties acknowledge and agree that in entering into this Agreement, each had recourse to its own skill and judgement and have not relied on any representation made by the other, their employees or agents.

All reasonable efforts have been made to ensure that these terms and conditions comply with the applicable legal provisions. Nevertheless, if any of these terms are determined to be unlawful, invalid, or unenforceable, such term shall be deemed severed from these terms and conditions and shall not affect the validity or enforceability of the remaining terms and conditions.

16. Indemnities

Without prejudice to the indemnities set forth in the Terms and Conditions, you hereby indemnify us, and undertake to keep us indemnified, against any and all losses, damages, costs, liabilities and expenses (including without limitation legal expenses and any amounts paid by us to a third party in settlement of a claim or dispute) incurred or suffered by us and arising directly or indirectly out of your use of our website or any breach by you of any provision of these terms and conditions.

17. Miscellaneous

17.1 Assignment

Assigning or sub-contracting any of your rights or obligations under these Terms and Conditions to any third party is prohibited unless agreed upon in writing. We reserve the right to transfer, assign, or sub-contract the benefit of the whole or part of any rights or obligations under these Terms and Conditions to any third party.

17.2 Relationship of the Parties

This Agreement does not create any agency, partnership, joint venture, or employment relationship, and neither Party possesses any authority whatsoever to bind the other in any manner.

17.3 Construction

Headings used in this Agreement are for convenience only and shall not be used in the interpretation of this Agreement. As used herein, the singular includes the plural, and the masculine, feminine, and neuter gender each includes the others where the context so indicates.

17.4 Entire agreement

These terms and conditions, along with our General Terms and Conditions policy, shall serve as the comprehensive agreement between you and us concerning your use of our website, and shall override all prior agreements between you and us regarding your use of our Platform. This Agreement may be modified only by a written instrument executed by all of the parties hereto.

17.5 No Waiver

In the event that any party to these Terms and Conditions fails to exercise any right or remedy contained herein, this shall not be construed as a waiver of that right or remedy.

17.6 Publicity

Vendor agrees that QFREEMART may disclose that Vendor is a customer of the Services in QFREEMART advertising, press, promotion, and similar public disclosures, including at trade shows and similar events. In addition to the foregoing, Customer hereby grants QFREEMART a non-exclusive license during the Term to list Customer's name and display Customer's logo as as QFREEMART customer on QFREEMART's website.

17.7 Notices

All notices/communications shall be provided to us either by mail to our Premises or by email to support@qfreemart.in. Such notice shall be considered received three days after posting if sent first-class mail, on the day of sending if the email is fully received on a business day, and on the next business day if the email is sent on a weekend or public holiday.

17.8 Survival

Any provision of this Agreement that, by its terms or to effectuate its meaning, must endure, and any other provisions that are explicitly or inherently intended to endure termination, shall survive the expiration or termination of this Agreement.

17.9 Force Majeure

Except for payment obligations, neither Party shall be held liable for any failure to perform its obligations under this Agreement where such failure arises from any cause beyond such Party's reasonable control, including but not limited to the elements; fire; flood; severe weather; earthquake; vandalism; accidents; sabotage; power failure; denial of service attacks or similar attacks; Internet failure; acts of God and the public enemy; acts of war; acts of terrorism; riots; civil or public disturbances; strikes, lockouts, or labor disruptions; and any laws, orders, rules, regulations, acts, or restraints of any government or governmental body or authority, civil or military, including the orders and judgments of courts.

17.10 Law and Jurisdiction

These terms and conditions and the relationship between you and QFREEMART shall be governed by and construed in accordance with the Law of the India and QFREEMART and you agree to submit to the exclusive jurisdiction of the Courts of the India.

17.11 Vendor Performance Obligations & Remediation

QFREEMART monitors Vendor performance to preserve trust on the Platform.

Order Delivery Success Rate: Vendors shall maintain at least 95% by both (a) number of orders and (b) aggregate order value.

Calculated as: $\text{Successfully Delivered Orders} \div \text{Orders Accepted} \times 100$.

Order Rejection & Cancellation Rate: Vendors shall maintain a combined rate below 5% by both (a) number of orders and (b) aggregate order value. Rejection = Vendor rejections; Cancellation = pre-acceptance (including Buyer-initiated) as well as post-acceptance cancellations.

Consequences: Failure may lead to reduced visibility, temporary suspension, scrutiny/audits, or delisting.

System of Record: Platform logs are final for metric calculations, subject to error correction by QFREEMART

These KPI Targets are published and may change with notice.

Remediation: For KPI breaches QFREEMART may: (i) issue warning, (ii) require action plan, (iii) temporarily suspend Facility features, (iv) terminate account for repeated or serious breaches. Vendors can appeal via the support process.

This document was last updated on 29 August 2025